

BOARDS, COMMITTEES AND COMMISSIONS

9 Attachment 8

City of Waterville

Appendix 1H

Committee Charge: Comprehensive Plan Review Commission [Adopted 12-28-2023 by Ord. No. 199-2023]

Establishment and Regulation.

City of Waterville City Charter, Article XI, § 9
1 M.R.S., Chapter 13, Freedom of Access
City of Waterville Ethics Ordinance (Chapter 18)

Purpose.

The City Charter adopted by voters in 2020 directed the creation of a Comprehensive Plan Review Committee, to first meet in FY 2021-2022 and every seven years thereafter.

The Commission is charged with advising the Planning Board on changes to the Comprehensive Plan.

In accomplishing its mission, the Commission is charged to carry out the following tasks:

- Review and update or modify the Plan as warranted to reflect current City foundational data, policies, goals, forecasts, implementation timetables and assignments, and scrutinize the organization, content, presentation and conclusions contained in the current Plan and add evidence-based trend analyses and contextually relevant comparative analyses.
- Coordinate with established standing and ad hoc committees, and City departments with expertise in elements of the Plan to seek their input regarding warranted updates, and to determine successes and challenges within their realms of expertise and as assigned in the Plan.
- Develop and make recommendations for updated goals and policies to be considered for adoption by the City Council.

Membership.

Membership shall be comprised of one Councilor, the City Manager, the Mayor and seven nonelected persons, who may or may not be residents of the City, who have knowledge or expertise in the following:

- Housing development, real estate, zoning, commercial development, urban planning
- Natural resources, recreation, historic preservation, cultural resources, architecture
- Recreation, neighborhood associations, citizen participation, community development
- Public transportation, walking and biking facilities, traffic safety
- Marketing and promotion, social media, networking, economic development

WATERVILLE CODE

Scope of Authority.

The Commission's role is to advise the Council, and to provide the Planning Board with recommended changes to the Comprehensive Plan based on its research, understanding, and conclusions as they relate to the members' professional and personal judgments regarding the future of the City.

In carrying out its mission, the Commission is encouraged to:

- Research comprehensive plans from other municipalities.
- Seek the input of developers, business leaders, bankers, nonprofit leaders and other relevant professionals.

The Commission is not authorized to make promises or enter into verbal or written agreements purporting to represent the City.

Conduct of Business.

The Commission is an official body of the City. As such it is subject to Maine's Freedom of Access Act, 1 M.R.S. § 403, and must meet in a location accessible to the public, allow the public to attend its meetings, publicly post the dates and times of its meetings, and keep minutes for the public record.

No member of the Commission may represent themselves or a family member, their business interests or those of a business partner, or participate in committee deliberations or vote on any matter having to do with such interests. When such a conflict occurs, the affected Commission member(s) must declare the conflict, recuse themselves from the meeting and vacate the meeting space until the conflict ceases to exist.

All members are subject to the conduct standards laid out in the City's Ethics Ordinance.

Reporting.

The City Councilor who is a member of the Commission will be called upon at each regular meeting of the Council, or at a frequency otherwise determined by vote of the Council, to report on the Commission's progress toward offering recommendations to the Planning Board.

Timeline

The Commission will first convene after adoption of Ordinance 265-2021 by the Council and will conduct an organizational meeting no later than February 28, 2021, to select a Chair and Secretary and set a meeting schedule with a minimum of one meeting per month. Summary reports shall be provided to the Planning Board on a quarterly basis. A final report will be provided by December 31, 2023, unless an extension has been requested and granted by the City Council.

Sunset.

The Commission is an ad hoc body required by the City Charter to be formed and populated at seven-year intervals. First convening 2021-2022. Subsequent convening every seven years post-enactment thereafter.